



File No.: EXP202211504

RESOLUTION OF ARCHIVE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 9, 2022, a complaint was filed with registration number REGAGE22e00044914417 before the Spanish Agency for Data Protection against VODAFONE ONO, S.A.U. with NIF A62186556 (hereinafter, the complained party). The grounds for the complaint are as follows:

The complainant submits a complaint regarding the receipt of a commercial call on their mobile line ***PHONE.1, registered on the Robinson List since 12/15/2021.

Along with the notification, the following is provided:

- An email justifying registration on the Robinson List, showing the personal data registered in their profile and the lines registered in the service.
- A recording of the call. The salesperson asks for the holder of the mobile line and introduces herself as: "Ana, from Vodafone," to offer an internet and mobile line promotion.
- A telephone contract to prove the ownership of the receiving line ***PHONE.1.
- A screenshot confirming the receipt of a call on 08/04/2022 at 17:08 hours, from the calling line ***PHONE.2.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 30, 2022, as recorded in the acknowledgment of receipt in the file.

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On December 1, 2022, a response was received by this Agency indicating:

“After conducting the necessary checks, we have verified that the complainant's telephone line, ***PHONE.1, is listed in the official Robinson list of ADigital and in Vodafone's internal Robinson list.”

“We have checked whether the calling numbers indicated in the information request are listed in our database with the telephone numbers used by our collaborators to make solicitation calls. To this end, we have verified that the numbers associated with our collaborators who make solicitation calls on behalf of Vodafone are not listed in our database. Therefore, it does not seem possible to relate the receipt of the calls that Mr. A.A.A. mentions in his complaint with my represented party.”

THIRD: On December 5, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

As a result of the investigations carried out, the following information has been obtained:

- Through information obtained from the numbering registry on the website of the “Association of Operators for Portability,” ***URL.1, it is verified that, as of the investigation date of this file, the

operators of the originating numbers of the calls were:

***PHONE.2

LEAST COST ROUTING TELECOM, S.L.

Regarding the complained number ***PHONE.2:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

- LEAST COST ROUTING TELECOM -> NET VOISS -> REDPHONE PERU S.A.C.

ORANGE confirmed the receipt of the call.

TECH TELECOM, the legal representative of NET VOISS in Spain, indicates that they have no record of the call and that the next holder in the chain is REDPHONE in Peru.

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On February 22, 2023, a request was sent by international certified mail to REDPHONE, requesting the reason for the calls, which was returned by the postal service.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competences attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competences attributed to it by other laws."

II

Final Provision Sixth, Section 2, of the LGTel (entry into force)

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the 'Official State Gazette'. Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

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Through the actions carried out by this Agency, it has been determined that the call made from the calling number does not belong to VODAFONE ONO or any of its collaborating companies; this number belongs to REDPHONE PERU S.A.C., a company based in Peru that has not responded to the information request made by this Agency. It should be noted that the LGT does not confer upon the

Spanish Agency for Data Protection any competences over a company located in Peru.

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the competence of the Spanish Agency for Data Protection.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present actions.

SECOND: TO NOTIFY this resolution to VODAFONE ONO, S.A.U. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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